

Petitioner Opening Brief

Questions presented

A.R.M. files this opening brief on April 14, 2025. The petition presents five related but distinct questions. First, whether Federal Rule of Appellate Procedure 16(b) permitted the parties to correct the certified record by restoring the unchanged declaration admitted as Agency Exhibit P-7. Second, whether the court may treat the later T.R. declaration at PA1–PA8 as agency evidence. Third, whether the agency lawfully assessed Unit Four, Harbor League, and registry-enabled risk one source at a time instead of evaluating their supported connections. Fourth, whether the agency meaningfully applied the regulatory acquiescence standard to the documented complaint route and lack of independent response. Fifth, whether the February 11 petition tender satisfied the thirty-day filing requirement notwithstanding its next-day cure.

A.R.M. submits that the P-7 correction was proper, the post-order proffer remains outside the merits record, and the petition was timely. On the CAT questions, A.R.M. seeks vacatur and remand for the agency—not this Court—to evaluate aggregate risk and official acquiescence under the correct framework.

Petitioner Opening Brief

Statement of the case

A.R.M. conceded removability and sought only withholding or deferral under the Convention Against Torture. The immigration judge admitted Exhibits P-1 through P-9 during the September 17–18, 2024 merits hearing, including A.R.M.’s eighteen-page P-7 declaration. The judge credited the central account of a two-night Unit Four detention, intentional abuse to obtain procurement information, the June complaint, and its transfer to Unit Four’s regional command. AR163–AR167. The judge nevertheless denied protection on October 22 after asking whether each feared source independently made torture more likely than not. AR168–AR177.

A.R.M. appealed on November 18. The Board dismissed the appeal on January 13, 2025, endorsing the separate-source treatment without constructing a combined pathway and relying substantially on formal Kalyrian safeguards. AR211–AR217. A.R.M. tendered this petition on February 11. The later record dispute concerned what the agency had already considered, not whether new events could be used to prove the CAT claim.

Petitioner Opening Brief

Certified-record composition

Judicial review proceeds on “the administrative record on which the order of removal is based.” 8 U.S.C. § 1252(b)(4)(A). The corrected certification identifies that record as AR1–AR238. Its eighteen agency documents include the pleadings, admitted exhibits, two hearing volumes, the immigration judge’s decision, the parties’ Board briefs, the Board order, and the certification materials. The correction did not add a merits source created after the agency proceedings; it supplied an exhibit that the agency receipts, transcript, and decisions already treated as admitted.

That distinction resolves both pending record questions. P-7 belongs in the review record because it was before the immigration judge and Board. The T.R. declaration does not: it was signed after the Board’s decision and filed only in this Court at PA1–PA8. The March orders therefore produced a coherent record boundary—restore the omitted agency exhibit under Rule 16(b), preserve the initial incomplete transmission as part of the filing history, and deny administrative-record treatment to the later proffer.

Petitioner Opening Brief

P-7 admission

The evidence of P-7's admission is direct and repeated. At AR117, the clerk identified the eighteen-page declaration lodged April 12, 2024; DHS stated that it had no authenticity, timeliness, or admission objection; and the immigration judge admitted it. At adjournment, the clerk again confirmed that P-1 through P-9 were admitted and that no P-7 objection remained. AR138. The reconvened hearing began with the same confirmation, and the closed-record ruling excluded no part of P-7. AR139, AR161. The written decision likewise listed P-7 among the admitted exhibits and stated that it was lodged before the hearing and admitted without objection. AR164.

Those are adjudicative events, not later counsel characterizations. P-7's filing history and contents were thus available to both agency tribunals. Its absence from the first court transmission could not change what occurred before the agency, and restoring the identical object did not enlarge the evidentiary record.

Petitioner Opening Brief

Rule 16(b) correction

Rule 16(b) permits the parties by stipulation to supply an omission from the agency record, and the Court may direct the same correction. The March audit did exactly that. It compared the exhibit receipt, both hearing volumes, the immigration judge's admitted-exhibit list, and the stored P-7 object. AR227–AR233. The object was 04-arm-sworn-declaration.pdf, eighteen pages, with SHA-256 08e8294532c23fe9feb5962ca5b7780ae958178e6c8e2b4840d1ee28f3c5d212. AR233. The audit found no annotation, replacement, missing page, or changed paragraph.

The corrected index placed that unchanged object at AR33–AR50 and left every later label undisturbed. AR234, AR236–AR238. It also retained the February transmission and its unexplained eighteen-label gap, preserving rather than rewriting the historical filing. AR219–AR226. Correction therefore matched Rule 16's purpose: the review record now corresponds to the proceeding that actually occurred, while the initial omission remains visible and verifiable.

Petitioner Opening Brief

Extra-record proffer

The T.R. declaration occupies a different procedural category. T.R. signed it on February 20, 2025, more than a month after the Board's January 13 order, and counsel tendered it in this Court on February 24 at PA1–PA8. It was never lodged with the immigration court, admitted at the hearing, or presented to the Board. The Rule 16(b) stipulation expressly excluded those pages, and the corrected certification confirms that no byte from the proffer entered the 238-page agency set. AR227, AR235, AR237–AR238.

A.R.M. sought a ruling on the proffer through a separate motion, and the Court denied administrative-record supplementation. This brief respects that ruling. PA1–PA8 is relevant only to explaining why correction of an omitted admitted exhibit differs from adding genuinely new material. A.R.M. does not cite the proffer to establish future risk, official knowledge, country conditions, or any other CAT merits proposition. Any lawful request based on later events belongs in the appropriate agency process.

Petitioner Opening Brief

Aggregate-risk rule

CAT protection turns on whether torture is more likely than not after all relevant evidence is considered. 8 C.F.R. § 1208.16(c)(2)–(3). Under *Rodriguez-Arias v. Whitaker*, 915 F.3d 968, 974–77 (4th Cir. 2019), an adjudicator may not divide feared sources into separate claims and demand that one source independently exceed the threshold. The inquiry must account for the cumulative probability of torture from all supported sources. Where pathways overlap, the agency should not count the same encounter twice; neither may it ignore a supported link because an enabling actor does not personally inflict the ultimate harm.

The agency stated the opposite method here. The immigration judge evaluated Unit Four, Harbor League, and registry personnel as distinct sources, found each below one half standing alone, and denied relief without assessing a connected chain. AR171. The Board endorsed that reasoning and again treated the individual findings as sufficient. AR212. Uncertainty affects weight, but it does not authorize omission of the aggregate inquiry *Rodriguez-Arias* requires.

Petitioner Opening Brief

Unit Four pathway

Unit Four is not a speculative actor introduced by country evidence alone. The immigration judge found that its officers detained A.R.M. for two nights, intentionally inflicted painful pressure and blows to obtain the copied ledgers, and warned against filing a complaint. AR167. The admitted declaration describes coercive questioning about the invoice copies and Nadia Pel, physical abuse, and a threat against S.M. AR40–AR43. Contemporaneous clinical and family sources documented A.R.M.’s condition following release, while the employment and export records showed official access to A.R.M.’s code and audit history. AR61–AR67.

There is contrary evidence: time elapsed, A.R.M. departed lawfully, and no authenticated current flag appears in the record. AR168, AR213. Those facts must be weighed. But the prior official abuse, continuing institutional identity, regional liaison access, and later receipt of A.R.M.’s complaint make Unit Four the principal harmful actor in the asserted chain. The error was evaluating that actor without the information pathways that could reconnect it to A.R.M. upon return.

Petitioner Opening Brief

Harbor League pathway

Harbor League's asserted role is narrower than the agency's separate-source analysis assumed. A.R.M. does not contend that every contractor controls officials or possesses detention authority. The record instead describes nonpublic procurement information moving through a contractor network: six sub-threshold invoices totaling 137,400 units, the North Quay Lamps nickname, the 16:42 export time, and a vendor permit associated with the July approach. AR56, AR63–AR65, AR69, AR125. The unidentified speakers knew ledger details, and the expert evidence identified overlap between vendor contacts, a dispatch office, and a former Unit Four logistics supervisor. AR154.

The inability to identify every messenger limits the inference and remains part of the agency's task. Yet requiring Harbor League itself to be an independently probable torturer answers the wrong question. Its supported function is to supply location or procurement information, exert pressure, and enable renewed Unit Four action. The agency needed to decide how much that contribution strengthened the overall pathway, not whether contractors alone satisfied every element of regulatory torture.

Petitioner Opening Brief

Registry pathway

The registry evidence likewise concerns identification and routing, not torture by a clerk. Kalyrian entry systems record passport scans, arrival terminals, destination regions, employment data, and household links. A Unit Four liaison may receive regional notifications and query those fields using a case code. AR75, AR79. The expert audit found unsupported queries in the sample but no authenticated current flag specific to A.R.M. That absence is an important limit; so is the lack of proof that every query reaches Merrow. AR79, AR214.

Those limits do not make identification irrelevant. A.R.M.'s employment code was already used to connect the procurement referral, security request, and complaint. AR61, AR64–AR66. On return, registry information could supply the location step that a contractor lacks and the regional notice that Unit Four could act upon. The immigration judge instead asked whether registry personnel independently would torture A.R.M. AR170. Because A.R.M. advanced the registry as an enabling link, that finding did not resolve the claim actually presented.

Petitioner Opening Brief

Combined probability

The record itself explains how the pathways fit. Registry notification may identify a returnee; Harbor League contacts may contribute household or workplace information; and Unit Four has official access and a demonstrated interest in the ledger disclosure. AR27, AR86, AR137, AR154, AR159. These links may converge on one encounter, so a proper analysis would avoid mechanically adding overlapping risks. But the opposite mistake—examining each component as if the others did not exist—necessarily understates a connected route.

Neither agency decision performed the required synthesis. The immigration judge stopped after three standalone findings and expressly made no combined assessment. AR171. The Board listed the sources again, observed that contacts were uncertain, and treated the separate findings as dispositive without identifying shared nodes or asking what the supported chain meant for overall probability. AR212–AR214. A.R.M. does not ask this Court to calculate that probability. The appropriate remedy is remand for one agency assessment that weighs the connections, their limits, and the contrary evidence together.

Petitioner Opening Brief

Acquiescence definition

Under 8 C.F.R. § 1208.18(a)(1) and (7), official acquiescence does not require an express agreement to torture. The relevant public official must have awareness of the activity—through actual knowledge or willful blindness—and then breach a legal responsibility to intervene. That standard directs attention to information reaching official channels, steps taken or deliberately avoided after notice, and whether available protective duties operated in practice. Formal prohibitions remain relevant evidence, but their existence does not itself resolve awareness or response.

The agency announced portions of this framework yet applied a materially narrower inquiry. The immigration judge emphasized the absence of direct evidence that a senior official knew future torture was planned or expressly approved abuse. AR172. The Board likewise found no direct senior-official approval. AR215. That formulation did not address willful blindness or determine whether institutional recipients failed to perform the independent-review and protective duties triggered by A.R.M.'s complaint. The missing analysis is legal error independent of any disagreement about ultimate factual weight.

Petitioner Opening Brief

Complaint routing

The complaint history supplies a concrete test of acquiescence rather than a generalized claim about Kalyrian governance. The Office of Civic Integrity accepted complaint **OCI - 23 - 441** at 11:32 on June 7, 2023 under route **IC - 2**, which called for independent conduct review. On June 9 the system linked it to procurement referral **CIV - 23 - 184** through A.R.M.'s employment code. On June 10 it changed the destination to **RC - 4**, Unit Four regional command—the institution accused of detention and abuse. The visible audit ended June 30 as “regional response pending,” with no independent interview, medical-record request, or witness contact. AR66, AR80, AR148.

Pel testified that the written protocol required external review and that she had warned supervisors about retaliation risk when complaints were returned to implicated officers. AR71, AR147. The record does not identify each reader or reveal a later response, but those gaps are part of the willful-blindness inquiry. The agency never explained why routed institutional notice and the absence of independent action carried so little weight.

Petitioner Opening Brief

Formal safeguards

The record contains genuine contrary evidence. Kalyrian law prohibits torture and retaliation, registered custody is required, an inspector hotline and external review desk formally exist, and discipline tables record some sanctions. AR173. The immigration judge could consider those protections, A.R.M.'s lawful departure, and the fact that A.R.M. did not use the national hotline after the municipal complaint. But a safeguard's written existence and its operation in the documented case are different propositions.

Here, the external-review protocol initially assigned an independent route, then sent the complaint back to Unit Four after the system linked A.R.M.'s employment code. The country sample likewise showed security complaints commonly routed to regional commands without complainant interviews. AR80, AR155. The judge treated national mechanisms as substantial evidence against acquiescence without reconciling them with that implementation evidence. AR172–AR176. The Board repeated the list and again omitted the routing code, Pel's warning, and the pending status from its analysis. AR215. Meaningful review requires an explanation that weighs both sides.

Petitioner Opening Brief

Review standard

Section 1252(b)(4)(B) makes administrative factual findings conclusive unless any reasonable adjudicator would be compelled to reach the contrary conclusion. A.R.M. does not ask the Court to replace the agency's predictions with its own or to decide that future torture is established. The questions presented instead concern the legal framework and whether the agency supplied reasoning adequate for review: aggregate consideration under § 1208.16(c)(3), acquiescence under § 1208.18(a)(7), and meaningful engagement with material evidence.

Those inquiries respect the statutory division of labor. Whether the agency used three isolated probability tests is visible on the face of AR171 and AR212. Whether it required direct senior-official knowledge while omitting willful blindness is visible at AR172 and AR215. Whether its stated path addresses the file-specific routing evidence can be assessed without choosing among disputed inferences. If the correct framework requires additional findings about links, notice, response, or relocation, the agency must make them on remand. Vacatur for analytical error is not appellate factfinding.

Petitioner Opening Brief

Meaningful consideration

An adjudicator need not discuss every exhibit or answer every argument. Rodriguez-Arias nevertheless requires meaningful engagement with substantial, material CAT evidence sufficient to permit judicial review. 915 F.3d at 977–80. The requirement matters most where credited facts and the chosen analytical route appear to pull in different directions. A.R.M.’s prior official detention was credited; the complaint’s transfer to the implicated regional command was documented; and the expert identified shared registry, contractor, and Unit Four nodes. AR86, AR154, AR159, AR167.

The Board answered that the immigration judge assigned permissible weight to Varo, Sore, S.M., and Pel. AR216. It did not address the source map, complaint sample, or file-specific sequence beyond passing references, nor did it explain how three standalone findings amounted to aggregation. Concision is not the problem. The decisions leave no discernible path from the evidence of connected sources and routed notice to the conclusions that aggregate risk and acquiescence were insufficient. Remand is needed for the agency to provide that path.

Petitioner Opening Brief

Petition timing

The Board entered and served its final order on January 13, 2025. AR211, AR217–AR218. A.R.M. tendered the petition for review on February 11, the twenty-ninth day after that order. The tender named A.R.M., identified the institutional respondent and the Board, specified the January 13 order, requested review, and was served. It therefore commenced review within the thirty days prescribed by 8 U.S.C. § 1252(b)(1).

The clerk identified one curable defect: counsel had not attached the order copy required for docket processing. Counsel supplied the complete eight-page copy on February 12 and preserved every identifying field from the February 11 tender. Nothing in that cure changed the challenged order, the party seeking review, the relief requested, or the date the petition was first received. Treating February 12 as a new petition date would erase the very filing that the deficiency notice allowed counsel to cure. The actual petition was timely under either the record chronology or the statutory calendar.

Petitioner Opening Brief

Requested relief

A.R.M. requests a judgment that keeps the record rulings and merits rulings distinct. The Court should recognize that Rule 16(b) properly restored the unchanged P-7 object at AR33–AR50 and should leave undisturbed the denial of administrative-record treatment for PA1–PA8. It should hold that the petition was tendered within thirty days and reject any suggestion that the February 12 attachment cure displaced the February 11 filing.

On the CAT disposition, the Court should grant the petition, vacate the agency’s denial, and remand. The remand should require one aggregate assessment of all supported risk pathways, with overlapping steps counted honestly; application of awareness, willful blindness, and duty to intervene to the complaint and protective-response evidence; and meaningful consideration of the contrary evidence, including formal safeguards, elapsed time, source limits, and relocation. That relief corrects the method while leaving the agency free to determine credibility, weight, factual links, and ultimate probability.

Petitioner Opening Brief

No first-instance findings

Several factual questions remain open and should remain so. The record does not establish a current personal registry flag, identify every Harbor League messenger, show that every query reaches Merrow, or reveal what response—if any—followed the June 30 complaint status. It also contains evidence favoring the Government: lawful departure, elapsed time, formal legal protections, potential relocation, and acknowledged limits in Varo’s sample. AR168–AR176. A.R.M. disputes the weight and synthesis of those matters, not their presence.

Accordingly, vacatur would not hold that torture is more likely than not, that a particular official will acquiesce, or that any contractor-official connection is proved. It would hold only that the agency must evaluate supported sources in combination, use the full regulatory awareness standard, and explain its treatment of material evidence. The agency may reach the same or a different result after applying that framework, provided its findings rest on the certified record and its reasoning permits review.

Petitioner Opening Brief

Conclusion and certificate

For these reasons, A.R.M. asks the Court to uphold correction of the omitted P-7 exhibit, maintain the exclusion of PA1–PA8 from the administrative record, recognize the February 11 petition as timely, grant the petition for review, vacate the CAT denial, and remand for proceedings consistent with the governing aggregate-risk and acquiescence standards. The requested judgment neither credits extra-record material nor decides the ultimate CAT burden.

Counsel certifies that the merits discussion in this brief relies exclusively on AR1–AR238 and the authorities identified in the brief. The post-order proffer is mentioned solely to define the record boundary. Counsel further certifies that this twenty-page brief was transmitted through the electronic filing system on April 14, 2025 and served the same day on counsel for the institutional respondent. Consistent with the caption and agency record, the brief refers to petitioner only as A.R.M.